

Rambhu Chaudhary vs The State Of Bihar on 7 August, 2023

Author: Chandra Shekhar Jha

Bench: Chandra Shekhar Jha

IN THE HIGH COURT OF JUDICATURE AT PATNA
CRIMINAL MISCELLANEOUS No.49411 of 2023
Arising Out of PS. Case No.-365 Year-2023 Thana- ARA NAGAR District
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Rambhu Chaudhary, S/o Late Jamuna Chaudhary, R/o Village- Rauza, P.S-
Ara Town, Distt.- Bhojpur.

Versus

The State of Bihar

... .. Opposite Party/s

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Appearance :

For the Petitioner/s : Mr. Ravindra Kumar, Advocate

For the Opposite Party/s : Mr. Parmanand Prasa, APP

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CORAM: HONOURABLE MR. JUSTICE CHANDRA SHEKHAR JHA

ORAL ORDER

2 07-08-2023

Heard learned counsel for the petitioner and learned Additional Public Prosecutor for the State.

2. The accused/petitioner seeks bail in connection with Ara Town P.S. Case No.365 of 2023 registered for the offence punishable under Section 392 of the Indian Penal Code but, later on Section 411 of the Indian Penal Code was added in the FIR.

3. The accused/petitioner is not named in the FIR and is in custody since 11.05.2023.

4. Allegation against the petitioner is to commit robbery along with other unknown co-accused persons and while committing so, looted cash of Rs.4,99,000/- belongs to informant.

5. It is submitted by learned counsel that the name of Patna High Court CR. MISC. No.49411 of 2023(2) dt.07-08-2023 petitioner surfaced during the course of investigation on the basis of confessional statement of co-accused, namely, Md. Taj Ali, in furtherance of which, no incriminating material recovered/surfaced as to connect the petitioner with present occurrence of robbery. It is submitted that petitioner not put on TIP as yet. While concluding argument, it is submitted that the petitioner is a man of clean antecedent and moreover investigation of this case has been completed, for which, charge- sheet has been submitted and, as such, there is no chance of tampering with the evidence.

6. Learned APP opposes the prayer for grant of bail to the petitioner.

7. In view of above-mentioned facts and circumstances and by taking note of fact as save and except suspicion arises out of confessional statement of co-accused, nothing incriminating surfaced against this petitioner prima facie with present occurrence of robbery, coupled with the fact that charge-sheet has already submitted, where petitioner is in custody since 11.05.2023, accordingly, the petitioner, above- named, is directed to be released on bail furnishing bail bond of Rs.10,000/- (Rupees Ten Thousand) with two sureties of the like amount each to the satisfaction of the learned Chief Judicial Patna High Court CR. MISC. No.49411 of 2023(2) dt.07-08-2023 Magistrate, Bhojpur, Ara in connection with Ara Town P.S. Case No.365 of 2023, subject to the conditions as laid down under Section 437(3) of the CrPC.

(Chandra Shekhar Jha, J.) Sanjeet/-

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